



Notification Waiver Determination

Genesis Minerals – Vault Minerals

Acquisition	Genesis Minerals Limited (Genesis) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued shares in Vault Minerals Limited (Vault), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	27 August 2026

Parties to the Acquisition	The acquirer, Genesis, is an ASX-listed gold producer and explorer with gold mining operations selling gold bullion produced from its operations and processing hubs in the Goldfields Region (Leonora and Laverton) in Western Australia. The target, Vault, is an ASX-listed gold exploration and mining company. Vault has three gold mining operations in Western Australia (one in the Midwest Region (Deflector) and two in the Goldfields Region (Leonora and Mount Monger)) and an advanced gold production restart operation in Ontario, Canada (Sugar Zone). Vault produces gold bullion, silver (as a by-product of its gold operations) and gold-copper concentrate. Genesis and Vault operate in the gold mining and production industry in Australia. This industry involves the exploration, development, extraction, processing and sale of gold-bearing ore for the production of refined gold, which is sold into international gold markets.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - the parties' combined share in the production and supply of gold in Australia and globally is low and the increase in share of supply arising from the Acquisition would be small - the presence of alternative producers and suppliers of gold in Australia and globally.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act